

For office use only:
King's Bench File No: _____

(To be completed after transmission to KB)

APPLICATION FOR A PROTECTION ORDER (On Behalf of)

In the matter of *The Domestic Violence and Stalking Act*

When you are applying on behalf of someone, you are the applicant and they are the subject.
The respondent in this application is the person whom the subject is applying for the protection order against.

BETWEEN:

_____, Applicant (you), applying on behalf of:		
First name	Middle name(s)	Last name
_____, Subject		
First name	Middle name(s)	Last name
		Date of Birth _____ dd/mm/yyyy (optional)
-and-		
_____, Respondent		
First name	Middle name(s)	Last name
		Date of Birth _____ dd/mm/yyyy (optional)

☒ Check each box that applies and include details in the space provided

I am 18 years of age or older and I am applying for a protection order against the respondent under *The Domestic Violence and Stalking Act* on behalf of:

- ☐ A minor, or
- ☐ a mentally incompetent person, and I am the person's committee appointed under *The Mental Health Act* or the person's substitute decision maker appointed under *The Vulnerable Persons Living with a Mental Disability Act*, and I have authority to make this application. (You may be required to produce documents or other evidence to support this statement.)

AND/OR

- ☐ I am a lawyer, a peace officer or a person designated by the minister for this purpose, and the subject has consented to me making this application on their behalf:
- ☐ In person
 - ☐ By telecommunication
- ☐ I am also applying for a protection order against the respondent for the following child(ren) under the age of 18 years:
(Complete only if applicable)

Child's full name (You must include first, middle and last names for each child)	Child's age

- ☐ I received help complete this application from:

Name of person (or POD code if applicable)	Address	Telephone number

- ☐ The attached **Appendix 'A'** sets out evidence I will be relying on at the hearing of my application. (Checking this box means that you will fill out the attached pages and that the completed pages will be part of your application)

- ☐ I will be relying on other evidence at the hearing of my application *(Include the name of any witness or a description of any document or other evidence you will bring to the hearing):*

Other evidence

- ☐ My lawyer will be attending the hearing with me for the purpose of this application.

Name of lawyer	Address	Telephone number

I understand that any information supplied in support of this application could be used to form the basis of an investigation or as evidence in this or any other proceeding, and that I could be required to pay any costs awarded against me.

Date of Application (dd/mm/yyyy)

Signature of person making application

You must provide an address on the confidential information sheet at which legal documents can be served on you. You should be aware that the respondent is entitled to a copy of this application and any evidence used in support of this application.

APPENDIX 'A'

EVIDENCE IN SUPPORT OF AN APPLICATION FOR A PROTECTION ORDER (ON BEHALF OF) (PAGE 1 OF 7)

I, _____, make these statements and believe them to be true evidence in
(Your full name)
support of my application for a protection order on behalf of the subject _____
(Full name)
against the respondent: _____
(Full name of person you are asking for an order against)

I have personal knowledge of the following information, **except where I say that what is stated is based on information from another person**, in which case, I believe that information to be true.

(Be as specific and detailed as possible when completing this document. You may wish to refer to “Legal Options for Protection from Domestic Violence and Stalking – Protection Orders” for definitions and examples. If you need more room, use the space provided at number 26 or attach additional blank paper.)

1. The respondent and the subject are or have been:
- ☐ Living together as married or common-law partners
 - ☐ In a dating relationship with each other
 - ☐ Parents of one or more child(ren) together by blood or adoption
 - ☐ Family by blood, marriage or adoption, specifically:
 - ☐ Parent/child
 - ☐ Siblings
 - ☐ Other:
 - ☐ None of the above – the respondent and the subject are not and have not ever been in a relationship with each other

2. There has been domestic violence or stalking by the respondent . ☐ Yes ☐ No

(If there has been more than one incident. Describe in detail the most recent incident in this boxed area and describe earlier incidents in the space provided at number 3 below)

Date of incident: _____
(include the day, month, year and time of the incident or be as accurate and specific as possible)

Location of incident: _____
(include the city, town or other area and the province where the incident occurred)

Description of incident: *(Describe the domestic violence or stalking in as much detail as possible)*

The respondent used or threatened to use a weapon during the incident described above. ☐ Yes ☐ No
(If yes, describe what was used or threatened to be used as a weapon)

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EVIDENCE IN SUPPORT OF AN APPLICATION FOR A PROTECTION ORDER (PAGE 2 of 7)

The police were called during or after the incident described above.

☐ Yes ☐ No

(If yes, include the name of the person who called the police and whether anyone was arrested. If possible, also include the charge(s), name of the police agency and police report number. If police were not called and you would like to explain why, use this space to do so.)

The subject was injured during the incident described above.

☐ Yes ☐ No

(If yes, describe in detail any physical or psychological injury resulting from the incident and describe any treatment received)

3. Have there been other incidents of domestic violence or stalking by the respondent?

☐ Yes ☐ No

*(If yes, describe **earlier incidents** of domestic violence or stalking in detail and include when, where, if weapons were involved, whether police were involved and whether any injuries resulted for each incident)*

(if you need more room, use the space provided at number 26 or attach additional blank paper)

4. The domestic violence or stalking against the subject is repetitive or escalating.

☐ Yes ☐ No

(If yes, explain how the domestic violence or stalking is repetitive or escalating)

5. The domestic violence or stalking is evidence of a pattern of coercive or controlling behaviour against the subject.

(If yes, describe the behaviour, including any name calling or put-downs; being isolated from friends and family, denial of food, clothing, or money; physical or sexual abuse; feeling scared, threatened or intimidated; or any other behaviour)

☐ Yes ☐ No

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6. There are other previous incidents of property damage or violence committed by the respondent, including incidents of violence against animals and or other people. ☐ Yes ☐ No
(If yes, describe previous incidents of violence and include when, where, if weapons were involved, whether police were involved and whether any injuries resulted for each incident)
7. Do you believe there are mental health concerns for the respondent? ☐ Yes ☐ No
(If yes, explain the reasons for your concerns)
8. Does the current status of the subject's relationship with the respondent increase the risk of domestic violence or stalking? ☐ Yes ☐ No
(If yes, describe the current status of the relationship, including any recent separation or intention to separate and explain why this increases the risk)
9. Are there other circumstances of either the respondent or the applicant/subject that may increase the risk of domestic violence or stalking? ☐ Yes ☐ No
(If yes, describe the circumstances of the respondent, such as: substance abuse, employment or financial difficulties, access to firearms or weapons, or any other circumstances. Describe the circumstances of the applicant/subject, such as: pregnancy, age, family circumstances, health or economic dependence, or any other circumstance)
10. The subject is being stalked by the respondent and has reason to fear for their safety. ☐ Yes ☐ No
(If yes, explain why the respondent's actions are making the subject afraid for their personal safety or why the subject should be deemed to fear)

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11. Does the respondent have access to or possess any firearms and or weapons? ☐ Yes ☐ No
(If yes, include a description of firearm(s) and ammunition the respondent owns, possesses or has access to, and where the item(s) may be located. Include a description of the weapon(s) the respondent owns, possesses or has access to, and where the items may be located)

12. The subject believes that the respondent will continue or resume domestic violence or stalking against them.
(If yes, explain why the respondent's actions are making you afraid for your personal safety) ☐ Yes ☐ No

13. I am making this application to include child(ren) under the age of 18 years. ☐ Yes ☐ No
(If yes, complete the boxed area below; if no, skip numbers 14 through 20, and go to number 21)

Child's full name			Child's date of birth	Subject's relationship to the child	Respondent's relationship to the child	Child currently resides with	I consent to acting on behalf of the child
First	Middle	Last	(dd/mm/yyyy)				
							☐ Yes ☐ No
							☐ Yes ☐ No
							☐ Yes ☐ No
							☐ Yes ☐ No
							☐ Yes ☐ No

14. Are there any court orders or written agreements between the subject and the respondent concerning parenting arrangements, custody, contact with a child, access or guardianship? Yes No
(If yes, include the details of the court or other legal proceedings and any orders granted or written agreements, such as a divorce order, an order under The Family Maintenance Act or The Family Law Act, separation agreement or any other order or agreement. Attach a copy of any order or agreement, if available)

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15. There has been domestic violence or stalking by the respondent against the child(ren) that I am making this application to include. ☐ Yes ☐ No
(If yes, describe the incident of domestic violence or stalking in detail and include the name of the child(ren), the date, the location, if weapons were involved, whether police were involved and whether any injuries resulted; if there has been more than one incident, describe the most recent occurrence first)
16. The child(ren) that I am making this application to include have witnessed domestic or stalking against the subject by the respondent. ☐ Yes ☐ No
(If yes, name the child(ren) and identify the incident(s) of domestic violence or stalking against the subject that the child(ren) witnessed)
17. There are other circumstances that increase the risk of domestic violence or stalking to the child(ren) that I am making this application to include. ☐ Yes ☐ No
(If yes, describe the circumstances, such as: pregnancy, age, family circumstances, health or economic dependence, or any other circumstances)
18. The subject believes that the respondent will continue or resume domestic violence or stalking, and an order for the protection of the child(ren) should be made without delay. ☐ Yes ☐ No
(If yes, include reasons for belief)
19. I am making this application in the best interests of the child(ren) and I have no interest that is in conflict with the interests of the child(ren). ☐ Yes ☐ No
20. I understand that I could be required to pay personally any costs awarded against me or the subject in any future court proceeding as a result of my making this application on the child(ren)'s behalf. ☐ Yes ☐ No

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EVIDENCE IN SUPPORT OF AN APPLICATION FOR A PROTECTION ORDER (ON BEHALF OF) (PAGE 6 OF 7)

21. There has been previous or ongoing court or other legal proceedings involving the subject and the respondent .
☐ Yes ☐ No
(If yes, include the details of the court or other legal proceedings and any orders granted or written agreements, such as: release order, recognizance, undertaking, probation order, conditional sentence order, peace bond, a divorce order, an order under The Family Maintenance Act or The Family Law Act, separation agreement or any other order or agreement. Attach a copy of any order or agreement, if available.)
22. Has the subject, or a person on behalf of the subject, made a previous application for a protection order or a prevention order against the respondent? ☐ Yes ☐ No
(If yes, include the details of the application, including the date of application and if the order was granted. Also indicate if the order was set aside, varied or revoked. Attach a copy of the order, if available)
23. The subject has a protection order against the respondent that has expired or will expire within 3 months ☐ Yes ☐ No
*(If yes, explain why a protection order is still needed and **attach a copy of the protection order to this application**)*
24. The subject has an order respecting conduct against the respondent under *The Family Law Act* which prohibits or restricts communication between them and prohibits or restricts the respondent's attendance at or near a place that the subject regularly attends. ☐ Yes ☐ No
(If yes, include the details of the order respecting conduct which prohibits or restricts the respondent's conduct with the subject. Attach a copy of the order, if available.)
25. The respondent has or has had a protection order or a prevention order against the subject. ☐ Yes ☐ No
(If yes, include the type of order and provide details. Also indicate if the order was set aside, varied or revoked. Attach a copy of the order, if available)

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26. Additional details regarding the seriousness or urgency of the circumstances or other reasons that I believe a protection order should be made without delay:
(Use this space to include any additional information you would like the court to consider or leave blank and go to number 26)

27. The facts set out in this document are true. I understand that it is a criminal offence to knowingly make a false statement in this document. ☐ Yes ☐ No

(DO NOT COMPLETE BELOW THIS LINE UNTIL YOU APPEAR BEFORE A PERSON AUTHORIZED TO ADMINISTER OATHS)

SWORN/AFFIRMED before me at the

_____ of _____
In the Province of Manitoba on the

Date of oath/affirmation (dd/mm/yyyy)

Signature of person authorized to administer oaths

Printed or stamped name and authority

Signature of person making oath/affirmation

For office use only:

I.D. verified _____

☐ Additional information attached